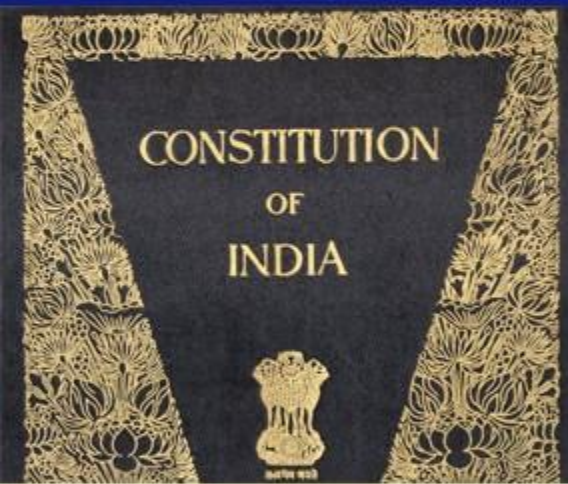


INDIAN POLITY



MODULE - 30

FUNDAMENTAL RIGHTS

■ **ARTICLE 12 & BCCI ISSUE**

FUNDAMENTAL RIGHTS

ARTICLE 12- DEFINITION OF STATE



1 The term 'State' has been used in different provisions concerning the fundamental rights. Hence, Article 12 has defined the term for the purposes of Part III.

- 2** According to it, the State includes the following:
- a) Government and Parliament of India, that is, executive and legislative organs of the Union government.
 - b) Government and legislature of states, that is, executive and legislative organs of state government.
 - c) All local authorities, that is, municipalities, panchayats, district boards, improvement trusts, etc.
 - d) All other authorities, that is, statutory or non-statutory authorities like LIC, ONGC, SAIL, etc.

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FUNDAMENTAL RIGHTS

ARTICLE 12- DEFINITION OF STATE



3 Thus, State has been defined in a wider sense so as to include all its agencies. It is the actions of these agencies that can be challenged in the courts as violating the Fundamental Rights.

4 According to the Supreme Court, even a private body or an agency working as an instrument of the State falls within the meaning of the 'State' under Article 12.

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FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?



Members of the Lodha Committee



Justice RV Raveendran

Former Judge, Supreme Court of
India



Justice RM Lodha

Former Chief Justice of India -
Chairman



Justice Ashok Bhan

Former Judge, Supreme Court of
India

INDIAN POLITY

BCCI REFORMS

GS PAPER 2 QUESTION

POSSIBLE MAINS QUESTION

- 1** The BCCI reforms as proposed by Supreme Court and other Committees are less utopian and more practical. Discuss. (200 words)
- 2** Do you think it is prudent on part of the Supreme Court to intervene and direct bodies such as BCCI to accept certain committee's recommendations to change their way of functioning? Substantiate. (200 Words)

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

HOW IT ALL BEGAN...SC's VIEW



1 In *Board of Control for Cricket in India Vs. Netaji Cricket Club and Ors.* (2005), the Supreme Court while considering the role and the nature of functions being discharged by the BCCI, held that **the Board's control over the sport of cricket was deep and pervasive and that it exercised enormous public functions**, which made it obligatory for the Board to follow the doctrine of 'fairness and good faith'.

2 The BCCI is not a part of the 'State' within the meaning of Article 12, as the Board was not created by any statute, nor a part of the share capital held by the Government.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

HOW IT ALL BEGAN...SC's VIEW



3

The “nature of duties and functions” which the BCCI performs viz.

1. It **regulates and controls the game** to the exclusion of all others.
2. It **formulates rules, regulations, norms and standards** covering all aspect of the game
3. It enjoys the **power of choosing the members of the national team and the umpires.**
4. It exercises the **power of disqualifying players** which may at times put an end to the sporting career of a person.

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

HOW IT ALL BEGAN...SC's VIEW



3

The “nature of duties and functions” which the BCCI performs viz. (contd...)

5. It spends crores of rupees on building and maintaining infrastructure like stadia, running of cricket academies and Supporting State Associations
6. It frames pension schemes and incurs expenditure on coaches, trainers etc.
7. It **sells broadcast and telecast rights** and collects admission fee to venues where the matches are played etc.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

HOW IT ALL BEGAN...SC's VIEW

4 All these activities are undertaken with the tacit **concurrence of the State Government and the Government of India** who are not only fully aware but supportive of the activities of the Board.

5 The State has not chosen to bring any law or taken any other step that would **either deprive or dilute the Board's monopoly** in the field of cricket.

6 On the contrary, the Government of India have allowed the Board to select the national team which is then recognized by all concerned and applauded by the entire nation including at times by the highest of the dignitaries when they win tournaments and bring laurels home.

7 Those distinguishing themselves in the International arena are conferred highest civilian awards like the **Bharat Ratna, Padma Vibhushan, Padma Bhushan, and Padma Shri** apart from sporting awards instituted by the Government.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

HOW IT ALL BEGAN...SC's VIEW



8 Any organisation or entity that has such pervasive control over the game and its affairs and such powers as can make dreams end up in smoke or come true cannot be said to be undertaking any private activity.

9 The functions of the Board are clearly public functions, and the entity discharging the same must be made **answerable on the standards generally applicable to judicial review of "State action"**.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

WHY WAS IT IN NEWS RECENTLY?



सत्यमेव जयते

Law Commission of India



- 1 The Law Commission of India recommended to the Government to make 90-year-old Board of Control for Cricket in India as a “public body”.
- 2 The ICC (International Cricket Council) recognises BCCI as the ‘official’ body representing India.
- 3 It exercises ‘state-like’ powers in the regulation of cricket.
- 4 Given these, **it should logically come under the definition of ‘state.’** It wanted the board and all its cricket member associations should be brought under the RTI Act.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

WHY WAS IT IN NEWS RECENTLY?



सत्यमेव जयते

Law Commission of India



- 5 The Law Commission further said that it should be brought under RTI Act's purview for scrutiny by any citizen.
- 6 The Board's monopolistic activities affected the fundamental rights of the citizens, players and other functionaries and hence it should be held accountable for its activities.
- 7 NSF - The BCCI virtually acts as a National Sports Federation (NSF). Thus, the Ministry of Youth Affairs & Sports website should explicitly mention BCCI in the list of NSFs. This would automatically bring it within the purview of the RTI Act.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

MORE ON THE BCCI



- 1 BCCI is registered under **Tamil Nadu Societies Registration Act**.
- 2 It was a charitable organisation under the Section 12 A of the Income Tax Act and the status was withdrawn in December, 2009, with effect from June, 2006.
- 3 Draft National Sports Development Bill, 2013 **favoured all National Sports Federations being treated as 'public authorities' under the Right to Information Act.**

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

WHAT ARE THE SUBSEQUENT DEVELOPMENTS?



Lodha Committee recommended that the Board can be treated as Public Authority under the RTI Act and subsequently, the Supreme Court wanted the Law Commission to examine the suggestion and now, Law Commission recommended BCCI should be brought under the purview of RTI Act.

- 1** Public character of the functioning of BCCI is widely recognised.
- 2** In the backdrop of betting scandal, it is very clear that it is functioning in opaque manner and the functioning is not entirely in the interest of cricket.
- 3** The Supreme Court's intervention led to the constitution of Justice R.M.Lodha Committee. It recommended sweeping reforms.
- 4** The Apex Court also reaffirmed the public character of the BCCI's functions.

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FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

WHY THE LAW COMMISSION RECOMMENDED BCCI AS A PUBLIC BODY?



B.S. CHAUHAN

Chairman,
21st Law Commission



- 1** BCCI exercised 'State-like' powers in the regulation of cricket. Hence, it comes under the definition of 'State'.
- 2** It virtually acted as a National Sports Federation.
- 3** It also recommended that BCCI should appear in the list of National Sports Federations in the Ministry website.
- 4** This would automatically bring BCCI within the purview of RTI Act.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

WHY THE LAW COMMISSION RECOMMENDED BCCI AS A PUBLIC BODY?



B.S. CHAUHAN

Chairman,
21st Law Commission



5 This is inevitable as the Cricket Board **was permitted de facto by the State to represent the country at the international stage.**

6 It selected Indian cricket team. The selected players wore the national colours and were the recipients of Arjuna Awards.

7 ICC recognised BCCI as the 'official' body representing India.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

WHY THE LAW COMMISSION RECOMMENDED BCCI AS A PUBLIC BODY?

8 BCCI is a private body that **needs no financial help** from the Government.

9 It is cash-rich and commercially successful apex body for cricket, but it performs significant public functions.

10 Monopolistic nature of power of BCCI is another issue. The Board's actions / decisions poses a significant impact on fundamental rights of the players, umpires and citizenry in general, will be there.

11 The **Board gets no financial help directly. Tax and duty exemptions and land concessions it got would amount to indirect financing by the State.**

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

WHAT IS A PUBLIC AUTHORITY UNDER RTI ACT?



1 It is defined in **Section – 2(h) of the RTI Act**. It states public authority means any authority or body or institution of self Government established or constituted...

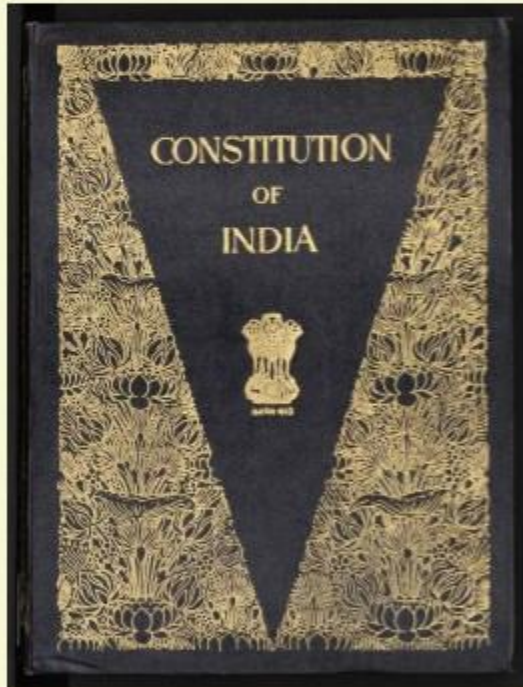
- By or under the Constitution
- By any other law made by Parliament.
- By any other law made by the State Legislature
- By notification issued or order made by the appropriate Government.
- It also includes body owned, **controlled** or **substantially financed**.
- Non-Government Organisations substantially financed, directly or indirectly by funds provided by the appropriate Government.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

WHY THE CONTROLLED/ SUBSTANTIALLY FINANCED BECAME THE GREY AREA?



- 1** The scope of the definition of a public authority is to include any body owned, controlled or substantially financed.
- 2** It also includes any Non-Governmental Body substantially financed by the appropriate Government and here question arises, what constitutes
 - Ownership
 - Control
 - Substantial financing

These are open to interpretation.

INDIAN POLITY

FUNDAMENTAL RIGHTS

BCCI – STATE OR NOT?

WHY THE CONTROLLED/ SUBSTANTIALLY FINANCED BECAME THE GREY AREA?



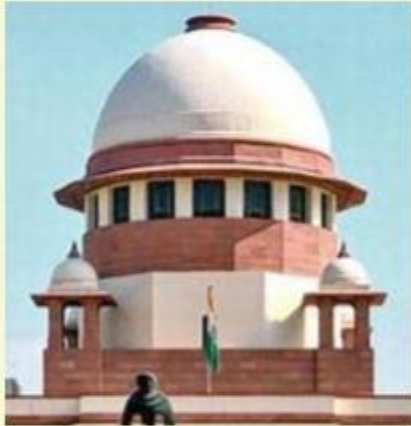
Words such as 'control' and 'substantial financing' have been construed liberally to widen the ambit of RTI Act. Till now, there is no judicial unanimity on the issue and courts continue to pronounce judgments on case-to-case basis

3 Substantial financing can be subsidies; land allotments by the Government; payments of grants for the salaries of teacher and staff in educational institutions and so on.

4 A case in point is, Indian Olympic Association was considered public authority, because Central Government paid the travel expenses of the players and provided 85% of their living expenses.

FUNDAMENTAL RIGHTS

NEW CHARTER FOR BCCI



JUSTICE R. M. LODHA

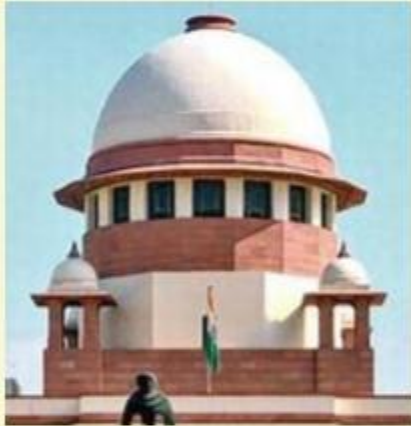
Former Chief Justice, Supreme Court

1. REPRESENTATION

- The Supreme Court finalized a new Charter for BCCI, it **rejected** “One State, One Vote” recommendation of Justice R. M. Lodha Committee.
- It disagreed with the Lodha Committee recommendations that cricket could prosper only if BCCI is represented by every State and Union Territory.
- The Supreme Court restored full BCCI memberships to three associations in Gujarat and Maharashtra each.

FUNDAMENTAL RIGHTS

NEW CHARTER FOR BCCI



JUSTICE R. M. LODHA

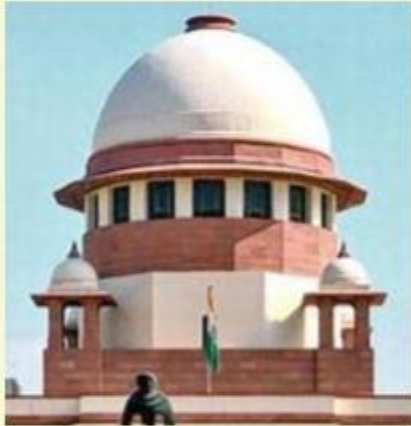
Former Chief Justice, Supreme Court

2. COOLING-OFF PERIOD

- Lodha Committee recommended that there should be a “cooling-off period”, after every three years in Office, before contesting elections to the BCCI or State Associations for the Cricket Administrators.
- The BCCI objected to this stating office-bearers needed a form of continuity to apply the knowledge and experience.
- The Court has found a middle ground, balancing the two views. The Court said that the cooling-off period will apply after two consecutive terms of six years in Office, whether in the BCCI or a State Association or a combination of both.

FUNDAMENTAL RIGHTS

NEW CHARTER FOR BCCI



JUSTICE R. M. LODHA

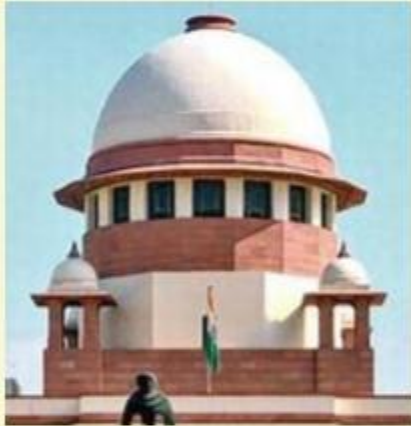
Former Chief Justice, Supreme Court

3. APEX COUNCIL

- The Court upheld Justice Lodha Committee recommendation of an “Apex Council” to professionally manage the BCCI.
- The Council would consist of a Chief Executive Officer, Chief Financial Officer and other officers, who must be recruited on a transparent and professional basis.
- The new structure will allow employed professionals to execute the decisions made by the Apex Council, making the BCCI functioning more professional.

FUNDAMENTAL RIGHTS

NEW CHARTER FOR BCCI



JUSTICE R. M. LODHA

Former Chief Justice, Supreme Court

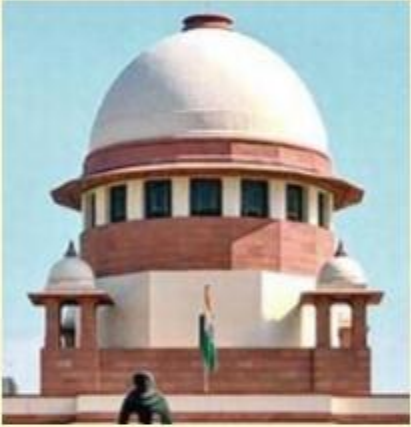
4. SELECTION COMMITTEE

- The Court also modified the number of selectors from the current three to five and it observed a “**Broad-Based Selection Committee**” is required to tap the prodigious talent pool spread across the Country.
- It also accepted the Lodha Panel recommendation of barring Ministers or Government servants from holding Cricket Office. It upheld the age cap of 70 years for cricket administrators.

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NEW CHARTER FOR BCCI



JUSTICE R. M. LODHA

Former Chief Justice, Supreme Court

5. MEMBERSHIP

- The Court also gave the Services Sports Control Board, the Railways and the Association of Universities full membership in the BCCI.

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